



CHAPTER xxxiii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the St. Andrew's Ambulance Association. A.D. 1911.

[2nd June 1911.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the St. Andrew's Ambulance Association Order Confirmation Act 1911. Short title.

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S C H E D U L E.

Provisional Order to authorise the St. Andrew's Ambulance Association to transfer a portion of the Red Cross Fund held by the said Association to the Scottish Branch of the British Red Cross Society to discharge the said Association in respect of and to sanction and confirm payments made to the said Scottish Branch and for other purposes.

WHEREAS the St. Andrew's Ambulance Association (in this Order referred to as "the Association") was established in Glasgow in the year one thousand eight hundred and eighty-two and was incorporated by Royal charter granted by Her late Majesty Queen Victoria on the eighteenth day of April one thousand eight hundred and ninety-nine :

And whereas the objects of the Association as set forth in the said charter are—

- (A) The instruction of persons in rendering first aid in cases of accident or sudden illness and in the transport of the sick and injured :
- (B) The instruction of persons in the elementary principles and practice of home nursing and hygiene :
- (C) The placing and maintaining of ambulance waggons stretchers and other appliances necessary for the relief of the injured in such situations as may be considered advisable to enable assistance to be given with the least possible delay :
- (D) The manufacture purchase and distribution by sale or presentation of ambulance appliances and material and the formation of ambulance depôts in or near railway stations shipbuilding yards mines factories and other centres of industry and traffic :
- (E) The organisation of ambulance corps invalid transport corps and nursing corps :
- (F) The issue of certificates of proficiency or medallions to persons who have attended the classes of the Association and who thereafter pass an examination appointed by the Association and the award of medals badges or certificates of honour for special services in the cause of humanity especially for saving life on land at imminent personal risk :

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- (G) The formation of local committees to manage the affairs funds and property of the Association in such places and upon such conditions as the council of the Association may from time to time determine: A.D. 1911.
- (H) And generally the promotion of instruction in and carrying out works for the relief of suffering of the sick and injured in peace or war:

And whereas the Association carries out the said objects by means of voluntary subscriptions and donations collected throughout Scotland but mainly in Glasgow and the vicinity thereof:

And whereas at a meeting of the council of the Association held on the twenty-first day of December one thousand eight hundred and ninety-nine the said council determined to carry out the work of a Red Cross Society in Scotland and thereupon the Association was recognised by the Central British Red Cross Committee as carrying on Red Cross work in Scotland and an appeal was made by the Association to the people of Scotland inviting subscriptions from them for the equipment of a base hospital in South Africa to be known as the Scottish National Red Cross Hospital:

And whereas at a public meeting held in Glasgow upon the second day of March one thousand nine hundred for the purpose of promoting the scheme of the Association for establishing a Red Cross Base Hospital in South Africa the following resolutions were duly passed:—

- (1) Approving of the formation of the Red Cross branch of the St. Andrew's Ambulance Association for aid to the sick and wounded in war;
- (2) Cordially recommending to the sympathy and liberality of the people of Scotland the scheme for establishing at Cape Town or elsewhere in South Africa as the military authorities might direct a base hospital to be called the Scottish National Red Cross Hospital; and
- (3) Appointing a general committee to co-operate with the council of the St. Andrew's Ambulance Association in raising funds for the Scottish National Red Cross Hospital with power to add to their number:

And whereas on the fifth day of March one thousand nine hundred at a joint meeting of the council of the Association and the general committee appointed at the said public meeting held on the second day of March one thousand nine hundred

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A.D. 1911. it was agreed that the council of the Association and certain persons then selected from the said general committee should form the Scottish National Red Cross Hospital executive (in this Order referred to as "the executive"):

And whereas the appeal for funds for the said Scottish National Red Cross Hospital resulted in subscriptions being received amounting to a sum of upwards of forty-five thousand pounds which sum was administered by the executive:

And whereas the said Scottish National Red Cross Hospital was duly equipped and sent to South Africa where it served until September in the year one thousand nine hundred when the said hospital being no longer required the subscribers thereto at a meeting called by public advertisement and held in Glasgow on the nineteenth day of September one thousand nine hundred approved of the recommendation of the executive to hand over the equipment of the hospital to the Government of Her late Majesty Queen Victoria:

And whereas at another meeting called by circular and public advertisement and held in Glasgow on the twenty-seventh day of March one thousand nine hundred and one the subscribers to the said fund on the recommendation of the executive authorised the executive to distribute the surplus of the funds in accordance with the following resolutions:—

1. "That this meeting of the subscribers to the Red Cross
" fund authorise the Red Cross executive of the St.
" Andrew's Ambulance Association to distribute one
" half of the surplus of that fund (after defraying all
" the expenses of the Scottish National Red Cross
" Hospital) in aid of existing Scottish funds for the
" relief of sufferers by the South African War in
" such manner and proportions as the Red Cross
" executive may resolve upon one thousand pounds
" thereof to be specially devoted to the relief of sick
" and wounded soldiers invalided home from that war
" and temporarily incapacitated from duty":

2. "That this meeting further authorise the St. Andrew's
" Ambulance Association to hold and apply the
" remaining half of the surplus of the Red Cross
" fund for the promotion of instruction in and
" carrying out works for the relief of suffering
" of the sick and injured in war all in terms of
" their Royal charter of incorporation":

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And whereas the Association on the fifteenth day of May one thousand nine hundred and one accordingly received from the executive the sum of nine thousand pounds on account of the one half of the surplus of the said Red Cross fund payable to the Association in terms of the resolution last above recited and on the eighteenth day of February one thousand nine hundred and two the Association received from the executive the sum of three hundred and seventy-four pounds seven shillings and ten pence being the balance of the said surplus which balance the executive on the twelfth day of February one thousand nine hundred and two recommended should be applied as follows:—

“ That after defraying any expenses incident to Dr. Beatson’s
“ history of the hospital and any further petty accounts
“ the surplus then remaining be dealt with in accordance
“ with the resolutions of twenty-seventh March last one
“ half of that surplus be applied for the relief of sick
“ and wounded soldiers either at home or in South Africa
“ and the remaining one half of that surplus be added
“ to the Red Cross fund in the hands of the Association
“ for the promotion of instruction in and carrying out
“ works for the relief of suffering of the sick and injured
“ in war all in terms of the Association’s Royal charter
“ of incorporation ”:

And whereas the Association on the nineteenth day of March one thousand nine hundred and two received the further sum of ten pounds nineteen shillings as the proceeds of sale of certain goods in the Red Cross exhibit at the Glasgow International Exhibition of one thousand nine hundred and one:

And whereas the said sums of nine thousand pounds three hundred and seventy-four pounds seven shillings and tenpence and ten pounds nineteen shillings together amounting to the sum of nine thousand three hundred and eighty-five pounds six shillings and tenpence have been held and administered by the Association and the Association has from time to time applied part of the said fund and part of the annual income thereof available for Red Cross work on objects of or connected with such work and has from time to time invested the balance of unexpended income along with the capital of the said fund:

And whereas the Association may be called on to pay over the whole or part or parts of the said sums of three hundred and seventy-four pounds seven shillings and tenpence and ten

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A.D. 1911. pounds nineteen shillings in terms of the above-mentioned recommendation of the executive of the twelfth day of February one thousand nine hundred and two:

And whereas on the seventeenth day of July one thousand nine hundred and five the British Red Cross Society (in this Order referred to as "the society") was constituted for the purpose of taking over all Red Cross work throughout the British Empire and on the third day of September one thousand nine hundred and eight the society was incorporated by Royal charter granted by His late Majesty King Edward VII.:

And whereas the Association is in sympathy with the objects and methods of the society and as the society have taken up Red Cross work in Scotland by means of their Scottish branch (hereinafter called "the Scottish branch") the need for the Association dealing with such work has to a large extent ceased:

And whereas the Association has determined that it is unnecessary to retain the whole of the said fund as being more than is requisite for the carrying out of the duties in connection with Red Cross work still incumbent on the Association:

And whereas the Association on the thirty-first day of August one thousand nine hundred and ten paid out of the said fund the sum of one hundred and thirty-five pounds and on the thirty-first day of October one thousand nine hundred and ten paid the further sum of one thousand two hundred and ninety pounds to the Scottish branch:

And whereas the said fund is at present represented by the investments and cash (hereinafter called "the fund") set forth in the schedule hereto:

And whereas the Association has arranged to take charge of the military hospitals in Scotland and to carry out certain Red Cross services in case of national emergency:

And whereas the council of the Association has resolved that a sum of three thousand five hundred pounds should be retained by the Association out of the fund for the carrying out of its duties in connection with Red Cross work and that the balance of the fund should subject to the deductions hereinafter mentioned be paid over to the Scottish branch upon the Association being relieved and discharged of and from all obligations (if any) to account for and pay over the whole or any part or parts of the said sums of three hundred and seventy-four pounds

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seven shillings and ten pence and ten pounds nineteen shillings or either of them with interest (if any) thereon and the said obligations (if any) being transferred to the society and the Scottish branch : A.D. 1911.

And whereas doubts have arisen as to the power of the Association to make the said payments of the said sums of one hundred and thirty-five pounds and one thousand two hundred and ninety pounds or to pay over the said balance of the fund (subject to the deductions hereinafter mentioned) to the Scottish branch and the Association is advised that it could not lawfully make the said payments and cannot lawfully pay over the said balance and that it cannot obtain from the Court of Session confirmation or authority therefor and it is expedient to confirm the said payments and to authorise the payment over of the said balance :

And whereas at a meeting of the Association convened by public advertisement and held in Glasgow on the twenty-fifth day of October one thousand nine hundred and ten the following resolution was passed :—

“That a Provisional Order be applied for by the Association
“ to enable it to transfer the Red Cross fund held by it
“ to the Scottish Branch British Red Cross Society with
“ the exception of a sum of three thousand five hundred
“ pounds part of the said fund which is to be retained by
“ the Association to enable it to carry out obligations
“ already undertaken including those under the sanction
“ of the War Office” :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the *St. Andrew's Ambulance Association Order 1911* and shall commence and have effect on and from the date of the passing of the Act confirming this Order. Short title and commencement of Order.

2. In this Order unless there be something in the subject or context repugnant to such construction the following expressions Interpretation.

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A.D. 1911. shall have the meanings hereinafter respectively assigned to them
(namely):—

“The Association” means the St. Andrew's Ambulance Association incorporated by Royal charter;

“The Society” means the British Red Cross Society incorporated by Royal charter;

“The Scottish branch” means the Scottish branch of the Society;

“The fund” means the investments and cash mentioned in the schedule hereto.

Payment of
portion of
fund to
Scottish
branch of
Society.

3.—(1) Notwithstanding anything contained in the said recited resolutions or any of them or otherwise the Association is hereby authorised and empowered to sell and convert into money the investments mentioned in the schedule hereto and to pay over to the Scottish branch the balance of the proceeds of the sale of the said investments and the cash representing the fund and any interest thereon after deducting—

(1) Any payments made by the Association up to the date of the passing of the Act confirming this Order in respect of obligations undertaken by it in regard to Red Cross work or objects connected therewith;

(2) The said sum of three thousand five hundred pounds to be retained as aforesaid by the Association; and

(3) The costs of this Order as hereinafter mentioned:

And the Scottish branch may receive the said balance of the fund and interest (if any) thereon after deduction of the said payments the said sum of three thousand five hundred pounds and the said costs as aforesaid and the receipt of the treasurers of the Scottish branch shall be a full and sufficient receipt and discharge to the Association for the same and such payment shall not be open to challenge or exception by any person body or corporation whatsoever.

(2) Upon payment by the Association to the Scottish branch of the said balance of the fund the Association shall be and it is hereby relieved and discharged of and from all obligations (if any) to account for or pay over the whole or any part or parts of the said sums of three hundred and seventy-four pounds seven shillings and tenpence and ten pounds nineteen shillings

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or either of them and interest (if any) thereon to and such A.D. 1911.
 payment shall not be open to challenge or exception by any
 person body or corporation whatsoever and the said obligations
 (if any) of the Association are hereby transferred to and shall
 be binding on the Society and the Scottish branch.

4. The said balance of the fund and interest (if any) thereon Application
 so paid to the Scottish branch as aforesaid shall be used and of moneys
 applied for the purposes of the Scottish branch in Scotland only. by Scottish
 branch.

5. The Association is hereby discharged of and from all Confirmation
 claims or demands by any person body or corporation whatsoever of payments
 in respect of the said payments of one hundred and thirty-five already made
 pounds and one thousand two hundred and ninety pounds made to Scottish
 by the Association to the Scottish branch and the payment of branch.
 these sums is hereby sanctioned and confirmed and shall not
 be open to challenge or exception by any person body or
 corporation whatsoever.

6. The costs charges and expenses of and incidental to the Costs of
 preparing for obtaining and confirming of this Order or other- Order.
 wise in relation thereto shall be paid by the Association out of
 the fund before the balance thereof is paid over to the Scottish
 branch as aforesaid.

SCHEDULE referred to in the foregoing Order.

Nominal Value.	Investment or Cash.
£2,000	£2 10s. 0d. per cent. Consolidated Stock.
£1,500	Natal £3 per cent. Consolidated Inscribed Stock.
£1,000	New South Wales £3 per cent. Inscribed Stock.
£1,000	Queensland £3 per cent. Inscribed Stock.
£2,000	Caledonian Railway Company £4 per cent. Debenture Stock.
£1,100	Irish Land £2 15s. 0d. per cent. Guaranteed Stock.
£100	Cash on deposit receipt with the Banker of the Association.
£15 8s. 0d.	Cash on current account with the Banker of the Association.
£9 6s. 1d.	Estimated value of office furniture.
£1 0s. 0d.	Cash in hands of treasurers.

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